

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Temporary Judge Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, August 06, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

25CV-06264	LVNV Funding LLC vs. Gabriel Medrano
------------	--------------------------------------

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff LVNV Funding LLC is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed April 3, 2026, granting Plaintiff's motion for an order deeming true requests for admission that were propounded to defendant Gabriel Medrano. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant and that Defendant's deemed admissions negate the denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant. The Court will sign the proposed order and proposed judgment submitted with the moving papers. The Court vacates the trial scheduled for February 3, 2027.

25CV-06986

Capital One, N.A. vs. Armando Castillo, Senior

Status Review of Settlement

Appearance required. Appear to address the status of settlement. If Plaintiff files a notice of conditional settlement or request for dismissal prior to the hearing, the hearing will be vacated.

26CV-02930

Justina Sosa vs. Chan Hei

Motion to Vacate Judgment Pursuant to Code Civ. Proc., § 116.730 (Small Claims)

Appearance required.

26CV-03127

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03571

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03642

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Hearing continued from July 27, 2026. The Court's previous tentative ruling stated:

For a demurrer to the complaint in an unlawful detainer action, an opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)
